

1 ENGROSSED HOUSE
2 BILL NO. 4128

By: Fetgatter of the House

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4 Kern of the Senate
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7 An Act relating to game and fish; amending 29 O.S.
8 2021, Section 5-401, which relates to seasons and
9 rules; providing an exception to open season
10 declaration; establishing start date for archery
11 period in certain counties; authorizing the Oklahoma
12 Department of Wildlife Conservation to prescribe
13 yearly total harvest limits; providing an exception;
14 and providing an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 29 O.S. 2021, Section 5-401, is
17 amended to read as follows:

18 Section 5-401. A. The Wildlife Conservation Commission is
19 authorized to declare an open season on wildlife in any counties or
20 parts of counties of this state where, in the judgment of the
21 Commission, such wildlife exists in sufficient quantity to warrant
22 such open season, and such open season shall be declared by
23 Commission resolution not less than ten (10) days before the season
24 is opened.

1 B. The Commission may designate any two (2) consecutive days
2 after the open season declared for hunting deer to be senior
3 citizen's hunting days. During those two (2) days only legal
4 residents of Oklahoma who are sixty-four (64) years of age or older
5 may hunt deer provided the person has a valid license as otherwise
6 provided by law.

7 C. The Commission is further authorized to declare an open
8 season on mountain lions and black bears; provided, such season for
9 bear shall include a muzzleloader and archery period to run
10 concurrent with muzzleloader deer season. For LeFlore, McCurtain,
11 and Pushmataha Counties only, archery period shall start no later
12 than September 15 of each year and shall run through deer
13 muzzleloading season. The Oklahoma Department of Wildlife
14 Conservation may, through their rulemaking authority, prescribe a
15 yearly total harvest limit for black bears; however, such yearly
16 total harvest limit shall not be set at less than two hundred black
17 bears harvested per year.

18 D. Except as provided in subsection E of this section, the
19 Commission is further authorized to prescribe rules necessary to the
20 proper conduct and policing of such open season, the amount and kind
21 of wildlife that may be taken, and the dates and time limits of such
22 season.

23 E. Any bowfishing season set for nongame fish by the Commission
24 for the Upper Illinois River shall include the following:

1 1. Upstream from the Horseshoe Bend boat ramp to where State
2 Highway 51 crosses the Illinois River bowfishing is permitted from
3 June 1 to March 31; and

4 2. Upstream from where State Highway 51 crosses the Illinois
5 River bowfishing is permitted from December 1 through March 31.

6 F. The Commission is further authorized to require any person
7 participating in such open season or hunting in open areas during
8 open season to procure, under rules prescribed by the Commission, a
9 special permit or license to participate in such season or hunt in
10 such areas during open season and to charge residents not to exceed
11 Twenty Dollars (\$20.00), nonresidents not to exceed Seventy-five
12 Dollars (\$75.00) and further providing that Five Dollars (\$5.00) of
13 this fee shall be set aside for compensation to Oklahoma surface
14 holders participating in the Acres for Wildlife Program at a rate to
15 be determined by the Wildlife Conservation Commission. No
16 exemptions shall be permitted.

17 G. Open seasons, closed seasons, bag limits, catch limits,
18 possession limits and territorial limitations set forth in the
19 statutes of this state, pertaining to wildlife of every sort, are
20 hereby declared to be based on the existence of a normal population
21 of such species of wildlife, compatible with and not damaging to the
22 proper agricultural use of the lands of the state.

23 H. Such seasons, catch limits, bag limits, possession limits
24 and territorial limitations as set by statute shall prevail and be

1 in full force and effect for each and every species of wildlife to
2 which they pertain so long as the population or numbers of such
3 wildlife species remain normal or are not damaging or endangering
4 crops or proper agricultural use of the lands of the state.

5 I. The Commission in session, and after having given ten (10)
6 days' public notice of such meeting being called and the purpose of
7 such meeting, the species of wildlife to be considered and the
8 reasons therefor, shall have the right to determine if there does or
9 does not exist a normal population of the wildlife species under
10 consideration, which does or does not endanger the crops of the
11 state or of any certain areas, or the agricultural use of the lands
12 therein. In the event the consideration is other than statewide,
13 the Commission shall meet at the most convenient place to the people
14 of the area in the area being considered. All meetings shall be
15 open to the public and proper records of those appearing and
16 testifying shall be made. If the Commission, after hearing and
17 after investigation, finds that the populations of the wildlife
18 species under hearing are not normal or that they are not compatible
19 to the agricultural use of the lands or are damaging or endangering
20 the farm crops of the area, they shall, by administrative order,
21 make the necessary changes by either extending, shortening, opening
22 or closing such seasons, and change such bag limits, catch limits
23 and possession limits, and regulate methods or devices for taking,
24 killing or capturing of the wildlife species affected in any area or

1 areas covered by the notice of meeting and hearing, except as
2 otherwise set by the Legislature.

3 J. Such administrative order shall take effect after
4 publication in at least one newspaper of general state circulation,
5 or in a newspaper having circulation in the territory affected. A
6 copy of all such orders shall, before publication, be filed with the
7 Secretary of State, and such order shall not be construed as
8 authorizing the Commission to change any penalty for violating any
9 game law or regulation or change the amount of any license
10 established by the Legislature.

11 SECTION 2. This act shall become effective September 1, 2026.

12 Passed the House of Representatives the 25th day of March, 2026.

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15 Presiding Officer of the House
16 of Representatives

17 Passed the Senate the ____ day of _____, 2026.

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20 Presiding Officer of the Senate
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